

CYBER SECURITY

UNIT 4 – COMPLETE DETAILED NOTES

Indian Evidence Act 1872 vs IT Act 2000 • Status of Electronic Records • Proof & Management of Electronic Records
Relevancy, Admissibility & Probative Value • Proving Digital Signatures • Proof of Electronic Agreements •
Proving Electronic Messages

Book-style notes with Practical Examples, Definitions, Flowcharts,
Diagrams, Important Points, Exam Notes & Memory Tricks

UNIT 4 – SYLLABUS (As per Examination)

S.No	Unit 4 Topics	Marks
1	The Indian Evidence Act of 1872 vs Information Technology Act, 2000	---
2	Status of Electronic Records as Evidence	---
3	Proof and Management of Electronic Records	---
4	Relevancy, Admissibility and Probative Value of E-Evidence	---
5	Proving Digital Signatures	---
6	Proof of Electronic Agreements	---
7	Proving Electronic Messages	---

How to read this book: Har topic me sabse pehle ek **long practical example** diya hai, phir **short definition**, phir **flowchart / diagram**, phir **important points** aur aakhir me **exam notes**. Isi order me padhna — definition yaad aasan ho jayegi.

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PART 1 – INDIAN EVIDENCE ACT, 1872 vs IT ACT, 2000

Jab cyber crime ka case court me jata hai to **Evidence Act** aur **IT Act** dono kaam karte hain — Evidence Act batata hai **kya saboot chalta hai**, IT Act batata hai **computer/e-signature ko kaise maano**. Dono sath-sath chalte hain.

1.1 Long Practical Example (Real Life)

PRACTICAL EXAMPLE – REAL LIFE

Ek landlord ne tenant par case kiya — rent nahi diya. Tenant bola — “main diya tha.”

Landlord ke paas sirf **WhatsApp chats** thi jisme tenant ne likha: “paisa bhej diya hai.”

Court me sawal: **kya chat ka screenshot saboot (evidence) banega?**

Yahan dono laws mile:

- **Evidence Act** — ye kehta hai evidence kya hota hai aur electronic record kaise sabit hota hai (Section 65B).
- **IT Act** — ye kehta hai electronic record ka legal status kya hai (Sec 2(1)(t), 4).

Correct certificate (65B) ke saath chats **court me chali gayi** — tenant ko rent dena pada.

Isliye dono acts ek saath padhne padhte hain.

1.2 Definitions

DEFINITION

Indian Evidence Act, 1872 — wo law jo batata hai **kaunsa saboot court me admissibility hai**, kaise proof hota hai, aur court kya maan sakti hai.

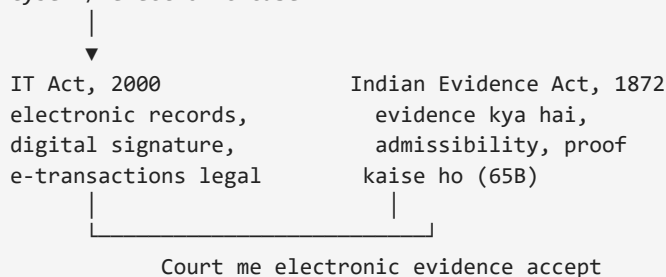
IT Act, 2000 — India ka cyber law jo **electronic records, digital signatures, e-transactions** ko legal maanyata deta hai aur cyber offences define karta hai.

Simple: Evidence Act = **Saboot ki book**; IT Act = **Computer ki book**. Cyber case me dono sath lagte hain.

1.3 Flowchart

FLOWCHART

Cyber / electronic case



1.4 Comparison (Table)

Basis	Evidence Act, 1872	IT Act, 2000
Kab bana	1872 (bahut purana)	2000 (computer era ke liye)
Kya batata hai	Evidence kya hai, kaise proof	Electronic records/signature legal
Main kaam	Admissibility + proof rules	Cyber offences + e-commerce legal
Electronic records	65A / 65B se prove hote hain	Sec 2(1)(t) me define
Digital signature	67A/73A/85B (opinion/presumption)	Sec 3, 3A (authentication)

Nature	Old + general law	New + special law (cyber)
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1.5 How They Work Together

- **IT Act 2000** ke through hi Evidence Act me **65A/65B, 67A, 73A, 85A/85B, 88A, 90A** jode gaye.
- IT Act ka **digital signature** hi Evidence Act me prove hota hai (67A/73A).
- Electronic record ka **legal status** IT Act se, **proof** Evidence Act se.
- Dono **supplement** karte hain — ek dusre ko replace nahi karte.

1.6 Important Points

IMPORTANT POINTS

1. **Evidence Act = general law**, IT Act = **special law** (cyber).
2. Electronic evidence ka **base IT Act** me hai, **admissibility Evidence Act** me.
3. Evidence Act 2000 me **amended** hua taaki electronic records admit ho sakein.
4. 65B certificate ke bina electronic evidence **admit nahi** hota (dubai ke maamle ke baad).

EXAM NOTES (2 MARKS / VIVA)

Exam Notes (2 Marks):

1. Evidence Act 1872 = evidence kaise prove hoga (general law).
2. IT Act 2000 = electronic records/digital signatures ko legal maanyata (special law).
3. IT Act ke amendment se Evidence Act me 65A/65B, 67A, 73A, 85A/85B jode gaye.
4. Dono saath chalte hain — ek replace nahi karta.

Viva Q1. Electronic evidence kis act se prove hota hai?

Ans: Evidence Act Sec 65A/65B (IT Act ne in sections ko add kiya).

Viva Q2. Evidence Act aur IT Act ka sambandh?

Ans: IT Act electronic records ko legal banata hai; Evidence Act batata hai wo court me kaise prove honge.

MEMORY TRICK

Evidence Act = Saboot ki book, IT Act = Computer ki book. Trick: **IT Act ne Evidence Act ko upgrade** kiya — 1872 purani, 2000 nayi, dono sath-sath.

PART 2 – STATUS OF ELECTRONIC RECORDS AS EVIDENCE

Pehle court me **kaagaz aur gawah** hi chalta tha. Ab **email, chat, CCTV, bank records** bhi evidence hai — par unhe **specific tarike** se prove karna padta hai. Isi ko 'Status of Electronic Records as Evidence' kehte hain.

2.1 Long Practical Example (Real Life)

PRACTICAL EXAMPLE – REAL LIFE

Ek shop me **chor ne owner ko dhoka diya**. Police ne pakda to bande ne kaha — “main wahin tha hi nahi.”

Police ke paas the:

- Shop ki **CCTV footage** — usme wo banda dikh raha tha.
- Uske **bank statement** — usi time ka transaction.
- Uska **call record (CDR)** — usi area ka tower.

Court me jab ye electronic records dikhaye gaye — **65B certificate** ke saath — to court ne maan liya.

Banda pakda gaya.

Electronic records (CCTV, bank, CDR) ka evidence ban jana — Status of Electronic Records.

2.2 Definition

DEFINITION

Electronic Record — data, record, image, audio, video, signal ya message jo **electronic form** me hai — email, chat, SMS, CCTV, bank statement, call records, websites.

Evidence Act Sec 3 ke amendment ke baad '**evidence**' me **electronic records** bhi شامل hain — IT Act Sec 2(1)(t) me electronic record define hua hai.

Simple: Jaisa kaghaz ka record evidence hai — waise hi digital record bhi evidence hai (sahi tarike se prove hone par).

2.3 Flowchart

FLOWCHART

```

Electronic record banta hai
| (email, chat, CCTV, bank, CDR)
▼
Evidence Act Sec 3: 'evidence' me include
|
▼
IT Act Sec 2(1)(t): electronic record
|
▼
Sec 65A + 65B se prove karna padta hai
| (certificate + proper conditions)
▼
Court me admissible evidence ban jata hai
  
```

2.4 Kya-Kya Electronic Record Hota Hai (Table)

Record	Example
Emails	Business / personal emails
Chats / SMS	WhatsApp, Messenger, SMS
CCTV footage	Camera recordings
Bank records	Statement, transactions, UPI

Call records (CDR)	Call detail records, tower data
Photos / videos	Mobile / camera files
Website / social posts	Post, comments, profile
Logs	Server, login, IP logs

2.5 Important Points

IMPORTANT POINTS

1. Electronic record ka **status evidence jaise hi** hai — par **saboot conditionally** (65B ke through).
2. **Section 65A** — electronic record ke contents 65B ke under hi prove ho sakte hain.
3. **Section 65B** — computer output + certificate ke saath admissible.
4. Bina 65B certificate ke electronic evidence **reject** ho sakta hai.
5. Record **tamper-free + authentic** hona chahiye — tabhi weight milta hai.

2.6 Prevention / Guideline (Sahi Tarike)

- Electronic evidence **original device/se** aur **copy dono** sambhal ke rakho.
- Har record ke saath **65B certificate** banao.
- Record ki **hash value** note karo — tampering prove karne ke liye.
- **Metadata** (time, date, sender) preserve karo.
- Chains of custody — kaun-kis se record mila, sab likha rakho.

EXAM NOTES (2 MARKS / VIVA)

Exam Notes (2 Marks):

1. Electronic record = data in electronic form (Sec 2(1)(t) IT Act).
2. Evidence Act Sec 3 me 'evidence' me electronic records include hain (2000 amendment).
3. Proof sirf 65A + 65B se hota hai — certificate ke saath.
4. Bina 65B certificate electronic evidence reject ho sakta hai.

Viva Q1. Electronic record kya hai?

Ans: Data/record electronic form me — email, chat, CCTV, bank records.

Viva Q2. Electronic record evidence kaise banta hai?

Ans: Evidence Act 65A/65B ke through — 65B certificate ke saath.

MEMORY TRICK

Electronic Record = Digital kaghaz. Trick: **65B = 6+5 = 11 baat yaad rakho** — certificate + 4 conditions ke bina computer output court me nahi chalta.

PART 3 – PROOF AND MANAGEMENT OF ELECTRONIC RECORDS

Proof — court me electronic record ko sahi tarike se sabit karna. **Management** — record ko aise sambhalna ki wo court me kharab na ho (tamper-proof). Dono mil kar case jeete hain.

3.1 Long Practical Example (Real Life)

PRACTICAL EXAMPLE – REAL LIFE

Ek company ke against employee ne case kiya — “salary chhupi.” Company ke paas **email** thi jisme employee ne offer accept kiya tha.

Company ne court me **sirf email ka printout** dikhaya — **no 65B certificate, no chain of custody**.

Employee ke lawyer ne objection kiya:

- Email me **tamper ho sakti hai** — prove karo asli hai.
- Computer kiska tha, kaise nikala — kuch proof nahi.

Court ne email **admit nahi ki** — company case haar gayi.

Sahi management (certificate + custody) na hone par electronic record bekaar ho jata hai.

3.2 Definition

DEFINITION

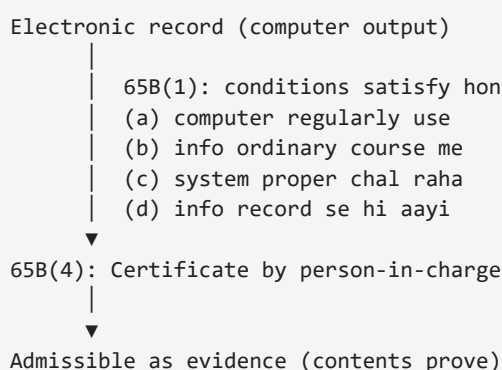
Proof of Electronic Records — electronic record ko **court me sabit karna** Evidence Act 65A/65B ke tarike se (computer output + 65B certificate).

Management of Electronic Records — record ko **safe, tamper-proof aur traceable** rakhna — backup, hash, metadata, access control, chain of custody.

Simple: Proof = court me **dikhaana**; Management = pehle se **sambhalna** ki kharab na ho.

3.3 Flowchart – Proof Process

FLOWCHART



3.4 Section 65B — 4 Conditions (Table)

Clause	Condition
65B(1)(a)	Computer regularly use hota tha us info ke liye
65B(1)(b)	Info normal course of activities me record hui
65B(1)(c)	Computer sahi (properly) chal raha tha

65B(1)(d)

Jo info dikha rahe, wo us record se copy/print hui

3.5 Management Best Practices (Sambhalne Ke Tarike)

- **Chain of custody** — record kahan-se kiska-paas gaya, har step likho.
- **Hash value** — original record ki hash lo; compare karke tampering catch karo.
- **Metadata preserve** — date, time, sender, device info.
- **Backup** — original + encrypted copies safe jagah.
- **Access control** — record ko kuch log hi touch karein.
- Record ko **seal/preserve** karo — jaisa mila, waise hi court tak.
- Forensic expert se **copy + analysis** karwao (write-protected).

3.6 Important Points

IMPORTANT POINTS

1. 65B(4) certificate **computer ka in-charge person** deta hai — jo us system ko control karta hai.
2. Certificate me likha hota hai ki conditions 65B(1) satisfy hui hain.
3. Proof ke waqt **original vs printout** — dono ko sath rakho.
4. **Management ki galti** = case ki haar — isliye pehle se sambhalna zaroori.

EXAM NOTES (2 MARKS / VIVA)

Exam Notes (2 Marks):

1. Proof = 65A/65B se computer output + certificate ke saath.
2. 65B ki 4 conditions: regular use, ordinary course, system proper, info se copy.
3. 65B(4) certificate in-charge person deta hai.
4. Management = chain of custody + hash + metadata + backup.

Viva Q1. 65B certificate kaun deta hai?

Ans: Computer system ka in-charge person.

Viva Q2. Hash value se kya pata chalta hai?

Ans: Record me tampering hui ya nahi.

MEMORY TRICK

Proof = Dikhaana, Management = Sambhalna. Trick: 65B ke **4 conditions = ABCD** — Agar regular use, B-normal kaam, C-system chal raha, D-info wahi se copy.

PART 4 – RELEVANCY, ADMISSIBILITY AND PROBATIVE VALUE OF E-EVIDENCE

Evidence court me tab tak bekaar hai jab tak wo **relevant**, **admissible** aur **weighty** na ho. Ye teen alag-alag cheezein hain — exam me sabse important part.

4.1 Long Practical Example (Real Life)

PRACTICAL EXAMPLE – REAL LIFE

Aman par case tha — usne online fraud kiya. Police ke paas the:

- **Bank transaction record** — jisme paisa Aman ke account me gaya.
- Uske doston ki **game chat** — jisme football ki baat thi.

Ab court me 3 sawal:

- **Relevancy** — bank record case se juda hai (relevant); game chat ka case se koi lena-dena nahi (irrelevant).
- **Admissibility** — bank record 65B certificate ke saath hai to admit hoga; bina certificate ke nahi.
- **Probative value** — certificate + metadata + matching amount ke saath bank record ka **weight** bada hai — court uspar bharosa karegi.

Yehi teen concepts — **Relevancy, Admissibility, Probative Value.**

4.2 Definitions

DEFINITION

Relevancy — kya ye fact case ke issues se **juda hai** (Evidence Act Sec 5-55).

Admissibility — kya evidence court me **legally accept** ho sakta hai (rules: hearsay, best evidence, 65B).

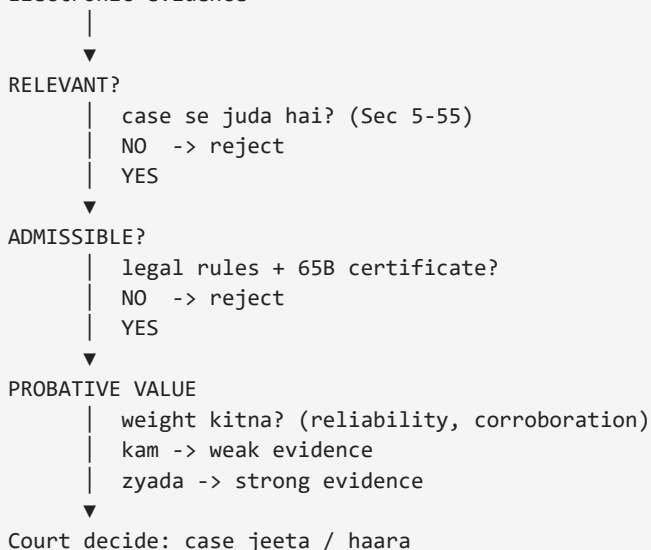
Probative Value — evidence ka **weight/bharosa** — kitna strong hai wo fact sabit karne ke liye.

Simple: Relevant = **juda hai**; Admissible = **andar aa sakta**; Probative = **kitna bolta hai**.

4.3 Flowchart

FLOWCHART

Electronic evidence



4.4 Relevancy vs Admissibility vs Probative Value (Table)

Basis	Relevancy	Admissibility	Probative Value
Sawal	Case se juda?	Law ke under accept?	Kitna bharosa?
Section	Sec 5-55 (IEA)	Evidence rules, 65B	Judge ki analysis
Nature	Logical link	Legal gate	Weight/reliability
Nahi ho to	Bahar (irrelevant)	Reject (inadmissible)	Weak evidence

4.5 Admissibility ke Rules (Electronic)

- **Best Evidence Rule** — original prove karo; copy par rely nahi (65B exception).
- **Hearsay** — computer output hearsay-like hai — isliye 65B certificate zaroori.
- **Authenticity** — prove karo ki record asli + tamper-free hai.
- **Produced properly** — sahi person + sahi tarike se court me pesh.

4.6 Probative Value Badhane Ke Tarike

- Record ko **corroborate** karo — 2 independent sources (bank + CCTV).
- **Hash + metadata** se authenticity prove karo.
- **Expert** (forensic / Examiner of E-Evidence Sec 79A) se analysis karwao.
- Witness se **human confirmation** — kisi ne dekha, kisi ne likha.
- Certificate **complete + correct** rakho — chhoti galti bhi reject karwa sakti hai.

EXAM NOTES (2 MARKS / VIVA)

Exam Notes (2 Marks):

1. Relevancy = case se juda hona (Sec 5-55).
2. Admissibility = legal rules + 65B ke through accept hona.
3. Probative value = evidence ka weight/bharosa (reliability).
4. Sabse strong = relevant + admissible + high probative value.

Viva Q1. Relevancy aur admissibility me farak?

Ans: Relevancy = logical link (juda hai); Admissibility = legal gate (accept ho sakta).

Viva Q2. Probative value kya hai?

Ans: Evidence ka weight — kitna strong wo fact sabit karne me.

MEMORY TRICK

Relevancy-Admissibility-Probative = Darwaza-Entry-Wazan. Trick: **R-A-P = Roko-Andar-Pesa** — Roko (relevancy check), Andar (admission), Pesa (weight).

PART 5 – PROVING DIGITAL SIGNATURES

Handwritten sign ka digital version = **Digital Signature**. Court me kisi electronic document par aaye sign ko **prove** karna — isliye Evidence Act me special sections (67A, 73A, 85B) hain.

5.1 Long Practical Example (Real Life)

PRACTICAL EXAMPLE – REAL LIFE

Rohit ne apni **income tax return** digital signature (DSC) se file ki. Baad me IT department ne kaha — “ye return tune nahi bhara tha.”

Ab court me sawal — **ye digital signature Rohit ka hai kaise prove hoga?**

Prove ke tarike:

- **Sec 67A (Evidence Act)** — Certifying Authority (CA) ki opinion — signature kis device/ka hai.
- **Sec 73A** — court digital signature verify karwa sakti hai.
- **Sec 85B** — presumption — secure digital signature ka signature, uske owner ka maana jata hai (jab tak ulta na sabit ho).

DSC record + CA record se Rohit ki baat pakki ho gayi — IT department ko maanna pada.

Digital signature ka owner aur validity court me sabit karna — Proving Digital Signatures.

5.2 Definition

DEFINITION

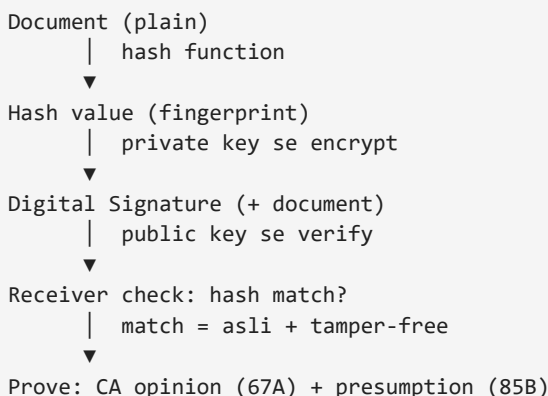
Digital Signature — electronic record ko authenticate karne ka tarika — **hash function + asymmetric crypto** (private + public key) se. (IT Act Sec 2(1)(p), 3)

Proving Digital Signature — court me sabit karna ki ye signature iska hai, valid hai aur record me koi tampering nahi (IEA 67A, 73A, 85B).

Simple: Hath ke sign ka digital twin — aur isko court me pehchan karwana.

5.3 Flowchart – Kaise Kaam Karta Hai

FLOWCHART



5.4 Proving Ke Sections (Table)

Section	Kya kehta hai
IEA 67A	Digital signature prove karne ke liye CA (Certifying Authority) ki opinion lena
IEA 73A	Court khud digital signature verify karwa sakti hai (comparison)

IEA 85B	Presumption — secure digital signature apne owner ka maana jata hai
IT Act 3	Digital signature ka process (hash + asymmetric crypto)
IT Act 2(1)(p)	Digital signature ki definition

5.5 Important Points

IMPORTANT POINTS

1. **Digital Signature = private key se signed, public key se verify** — jisne sign kiya wo deny nahi kar sakta (non-repudiation).
2. **Sec 85B** presumption ka matlab — court maan leti hai ki signature owner ka hai, jab tak opposite prove na ho.
3. **Sec 67A** — Certifying Authority ki opinion se proof.
4. Hash mismatch = document badal gaya — signature invalid.

5.6 Guideline (Sahi Use)

- DSC sirf **certified CA** se lo.
- Private key ko **safe** rakho — kisi se share na karo.
- Document sign karne se pehle **hash compare** karo.
- CA ka **record / certificate** rakho — court me prove ke liye.
- Expired / revoked certificate se sign **invalid** hota hai.

EXAM NOTES (2 MARKS / VIVA)

Exam Notes (2 Marks):

1. Digital signature = hash + asymmetric crypto (private/public key).
2. IEA 67A = CA opinion; 73A = court verification; 85B = presumption of owner.
3. Non-repudiation — sign karne wala deny nahi kar sakta.
4. Hash mismatch = tampering.

Viva Q1. Digital signature prove kaise hota hai?

Ans: IEA 67A (CA opinion) + 73A (court verify) + 85B (presumption).

Viva Q2. Sec 85B kya presumption deta hai?

Ans: Secure digital signature apne owner ka maana jata hai jab tak opposite prove na ho.

MEMORY TRICK

Digital Signature = Digital hath. Trick: **85B = bharosa** — B = Bharosa ki signature owner ka hai. Private key se sign, public key se verify.

PART 6 – PROOF OF ELECTRONIC AGREEMENTS

Online contract (agreement) kya **legal** hai? Haan — **IT Act Sec 10A** ke under. Par court me use **prove** karna bhi zaroori hai — Evidence Act Sec 85A se.

6.1 Long Practical Example (Real Life)

PRACTICAL EXAMPLE – REAL LIFE

Meena ne ek website se **laptop** order kiya. Website ka **terms & conditions** online accept kiya — “I agree” box par click kiya.

Paise gaye, laptop nahi aaya. Meena ne case kiya.

Court me:

- Website ka **order record** — uska agreement tha.
- Sec 85A (IEA) — presumption ki electronic agreement ka agreement asli hai (jab tak ulta na prove ho).
- IT Act 10A — electronic me bana contract valid hai.

Order record + payment proof se Meena jeet gayi — website ko refund dena pada.

Online contract ko court me prove karna — Proof of Electronic Agreements.

6.2 Definition

DEFINITION

Electronic Agreement / E-Contract — contract jo **electronic medium** (website, email, app) par bana — offer + acceptance + consideration, sab electronic.

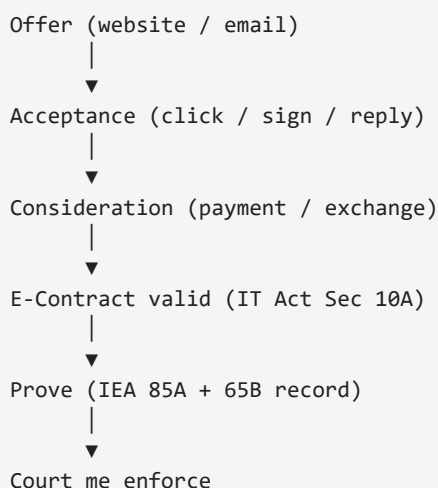
IT Act **Sec 10A** — e-contract valid hai, sirf isliye ki electronic me hua.

IEA **Sec 85A** — presumption ki electronic agreement ka agreement hai (jab tak opposite prove na ho).

Simple: Hath se sign ki jagah **click karna** — par utna hi legal.

6.3 Flowchart

FLOWCHART



6.4 E-Contract Ke Elements (Table)

Element	Electronic me kya hota hai
Offer	Website listing / email proposal
Acceptance	'I agree' click, order, reply

Consideration	Online payment
Consent	Terms & conditions accept karna
Authentication	Login / OTP / digital signature
Record	Server log, email, invoice

6.5 Proving Ke Tarike (Section)

Section	Kaam
IT Act 10A	E-contract valid — electronic hone se invalid nahi
IT Act 2(1)(h)	'data' + electronic record ki definition
IEA 85A	Presumption — electronic agreement asli + properly executed
IEA 65B	Agreement ke computer records prove karne ke liye
IEA 67A/73A	Agar digital signature use hua to usko prove karna

6.6 Important Points

IMPORTANT POINTS

1. **E-contract ka bhi valid** — bas aakhri (binding) hona chahiye: offer, acceptance, consideration.
2. **Sec 85A** — court presume karti hai ki electronic agreement ka agreement hi hai.
3. **Proof** ke liye records (server log, email, payment) 65B se.
4. Website par **terms clearly visible** honi chahiye — chhupa contract invalid ho sakta.

EXAM NOTES (2 MARKS / VIVA)

Exam Notes (2 Marks):

1. E-contract valid = IT Act Sec 10A.
2. IEA 85A = presumption ki electronic agreement asli hai.
3. Elements = offer + acceptance + consideration + record.
4. Proof = 65B records + (digital signature ho to 67A/85B).

Viva Q1. E-contract valid kyu hai?

Ans: IT Act Sec 10A — electronic me bana contract valid, sirf electronic hone se invalid nahi.

Viva Q2. Sec 85A kya presume karta hai?

Ans: Electronic agreement ka agreement hai (asli + properly executed).

MEMORY TRICK

E-Contract = Online nibandh. Trick: **10A = asli** (IT Act) aur **85A = bharosa** (Evidence Act) — dono sath milke online contract court me kadak banate hain.

PART 7 – PROVING ELECTRONIC MESSAGES

Electronic Messages — email, SMS, WhatsApp, chat. Court me inhe **prove** karna — kaunsa message, kisne bheja, kya likha tha — iske liye 65B + 88A jaise sections hain.

7.1 Long Practical Example (Real Life)

PRACTICAL EXAMPLE – REAL LIFE

Ek manager ko employee se **dhamki wali email** mili — “job se nikala to anjaam buri.”

Manager ne case kiya. Court me prove karna tha:

- **Ye email kisne bheji?** — email header + IP + account se pata chala.
- **Message asli hai?** — 65B certificate + hash se.
- **Mil bhi gaya?** — IEA 88A presumption — message recipient ko pahuncha maana jata hai.

Email header me IP address aur account ki info se employee pakda gaya — saza mili.

Email/chat ko court me sabit karna — Proving Electronic Messages.

7.2 Definition

DEFINITION

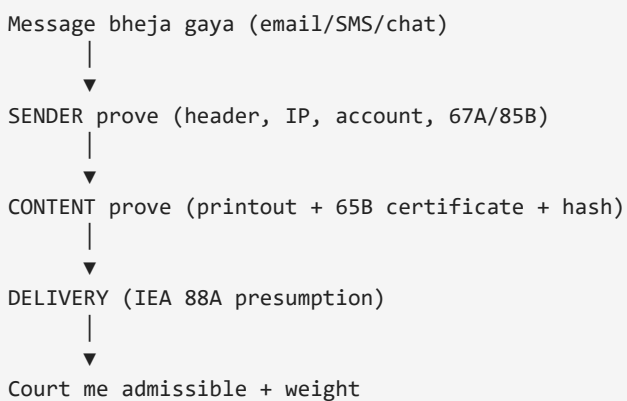
Electronic Message — koi bhi message jo electronic device se bheja gaya — email, SMS, WhatsApp/chat, voice note, video message.

Proving Electronic Messages — message ka **content, sender aur delivery** court me sabit karna — 65B (record), 88A (delivery presumption), headers/IP/logs (sender).

Simple: ‘Bolne wala kaun, baat kya, pahunchi kya’ — teeno prove karna.

7.3 Flowchart

FLOWCHART



7.4 Proving Ke Points (Table)

Kya prove karna	Tarika
Content kya tha	Printout/screenshot + 65B certificate + hash
Kisne bheja (sender)	Email header, IP address, account logs, digital signature
Message pahuncha	IEA 88A — presumption of delivery at destination
Tamper nahi hua	Hash value + forensic analysis (Sec 79A examiner)
Kis device/computer se	65B certificate (computer ka in-charge)

7.5 Important Points

IMPORTANT POINTS

1. **88A presumption** — electronic message apne address (destination) par pahuncha maana jata hai, jab tak ulta na prove ho.
2. **Sender** prove karna sabse mushkil — email header + IP + account se.
3. Screenshot **akela kaafi nahi** — 65B certificate chahiye.
4. Chats me **context + timestamps** bhi important hain.
5. Message ki **copy vs original** — dono sath rakho.

7.6 Guideline (Sahi Tarike)

- Message ka **screenshot + original device** dono sambhalo.
- **Header (email) / metadata** preserve karo.
- Har message ke saath **65B certificate** banwao.
- **Hash** note karo — tampering prove nahi ho sake.
- Chah to **forensic** se nikalo — unhe kaante jayenge.

EXAM NOTES (2 MARKS / VIVA)

Exam Notes (2 Marks):

1. Electronic message = email/SMS/chat (electronic form me).
2. Prove = sender (header/IP) + content (65B) + delivery (88A).
3. IEA 88A = presumption ki message destination par pahuncha.
4. Screenshot akela kaafi nahi — certificate + hash chahiye.

Viva Q1. Email ka sender kaise prove hota hai?

Ans: Email header, IP address, account logs se.

Viva Q2. Sec 88A kya presume karta hai?

Ans: Electronic message apne destination par pahuncha maana jata hai.

MEMORY TRICK

Electronic Message = Digital kaagaz. Trick: **88A = aayi** — message Aa gaya (pahuncha). Content = 65B, Sender = Header+IP. Teenon sath = case pakka.

APPENDIX – QUICK REVISION SHEET (UNIT 4)

Sabse Pehle Yaad Rakho — One-Line Definitions

Topic	Ek Line Me
Evidence Act, 1872	Saboot ki book — kaunsa evidence chalta hai, kaise prove hota hai
IT Act, 2000	Computer ki book — electronic records/digital signatures legal
Electronic Record	Data in electronic form — email, chat, CCTV, bank, CDR (Sec 2(1)(t))
Status as Evidence	Evidence Act Sec 3 me 'evidence' me include (2000 amendment)
Sec 65A	Electronic record ke contents sirf 65B se prove ho sakte
Sec 65B	Computer output + certificate ke saath admissible (4 conditions)
Relevancy	Case se juda hona (Sec 5-55)
Admissibility	Legal gate — 65B + rules ke through accept hona
Probative Value	Evidence ka weight/bharosa
Digital Signature	Hash + asymmetric crypto (private/public key)
IEA 67A	CA (Certifying Authority) ki opinion se sign prove
IEA 85B	Presumption — secure digital signature owner ka
E-Contract	IT Act 10A — valid; IEA 85A — presumption asli hai
Electronic Message	Email/SMS/chat — prove: sender(header/IP) + content(65B) + delivery(88A)

Memory Tricks

- Evidence Act = **Saboot ki book**, IT Act = **Computer ki book**.
- 65B ke 4 conditions = **ABCD** — Agar regular use, B-normal kaam, C-system chal raha, D-info wahi se copy.
- 65B certificate = **in-charge person** deta hai.
- R-A-P = **Roko-Andar-Pesa** — Relevancy, Admissibility, Probative value.
- Digital signature = **Digital hath** (private key se sign, public key se verify).
- 85B = **Bharosa** (sign owner ka maana jata hai).
- E-Contract = **Online nibandh** — 10A = asli, 85A = bharosa.
- 88A = **Aayi** — message pahuncha maana jata hai.

Rapid Fire Viva (14 Questions)

Q	Answer
Evidence Act kab bana?	1872
IT Act kab bana?	2000
Electronic record ka section (IT Act)?	Sec 2(1)(t)
Electronic evidence kaise prove?	IEA 65A + 65B
65B certificate kaun deta?	Computer ka in-charge person

65B ki kitni conditions?	4 (65B(1) a,b,c,d)
Relevancy ka section?	Sec 5-55 (IEA)
Admissibility ke 2 rules?	Best evidence + hearsay (65B se cure)
Digital signature process?	Hash + private key encrypt + public key verify
Sec 67A kya maangta?	Certifying Authority ki opinion
Sec 85B presumption?	Secure digital signature owner ka
E-contract valid kaunsa section?	IT Act Sec 10A
Sec 85A presumption?	Electronic agreement asli hai
Sec 88A presumption?	Message destination par pahuncha

Note: Ye Unit 4 ka complete notes hai — Evidence Act + IT Act ka electronic evidence wala hissa.